

intended to provide for a fee award if the official was immune from the underlying relief on which the award was premised. See *Supreme Court of Virginia v. Consumers Union of United States, Inc.*, 446 U. S. 719, 738-739 (1980). Before addressing the specific provisions of § 1988, therefore, we turn to the more fundamental question, that is, whether a judicial officer acting in her judicial capacity should be immune from prospective injunctive relief.⁵

III

Although injunctive relief against a judge rarely is awarded, the United States Courts of Appeals that have faced the issue are in agreement that judicial immunity does not bar such relief.⁶ This Court, however, has never decided the question.⁷

to prevailing plaintiffs in such litigation is particularly important and necessary if Federal civil and constitutional rights are to be adequately protected. To be sure, in a large number of cases brought under the provisions covered by H. R. 15460, only injunctive relief is sought, and prevailing plaintiffs should ordinarily recover their counsel fees." (Footnote omitted.)

⁵This Court's Rule 21.1(a) provides: "The statement of a question presented will be deemed to comprise every subsidiary question fairly included therein." The question whether judicial immunity should have barred the injunctive relief awarded in this case is "fairly included" in the question presented.

⁶Although the Court in *Supreme Court of Virginia v. Consumers Union of United States, Inc.*, 446 U. S. 719, 735 (1980), did state that the Courts of Appeals appeared to be divided on the question, an examination of the recent pronouncements of those courts indicates that they are in agreement that judicial immunity is no bar to injunctive relief. See, e. g., *In re Justices of Supreme Court of Puerto Rico*, 695 F. 2d 17 (CA1 1982); *Heimbach v. Lyons*, 597 F. 2d 344 (CA2 1979); *Timmerman v. Brown*, *supra*; *Slavin v. Curry*, 574 F. 2d 1256 (CA5), vacated as moot, 583 F. 2d 779 (1978); *WXYZ, Inc. v. Hand*, 658 F. 2d 420 (CA6 1981); *Harris v. Harvey*, 605 F. 2d 330 (CA7 1979), cert. denied, 445 U. S. 938 (1980); *Richardson v. Koshiba*, 693 F. 2d 911 (CA9 1982).

The Eighth Circuit at one time seems to have taken contradictory positions on whether judges are immune from declaratory and injunctive relief. Compare *Koen v. Long*, 428 F. 2d 876 (1970), *aff'g* 302 F. Supp. 1383, 1389

[Footnote 7 is on p. 529]